

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior Judge John L. Kane**

Date: April 30, 2008

Deputy Clerk: Bernique Abiakam
Court Reporter: Janet Coppock

Civil Action No.: 00-cv-01077-JLK-KLM

UNITED STATES OF AMERICA, ex rel,
ALI BAHRANI,

George W. Parker, Jr.
Brian Ulmer
Robert Krause

Plaintiff/Relator,

v.

CONAGRA, INC.,
CONAGRA HIDE DIVISION,
CONAGRA BEEF COMPANIES, and
MONFORT, INC.,

Darrell G. Waas
Patricia Campbell

Defendants.

COURTROOM MINUTES

Jury Trial Day 3

8:52 a.m. Court in session.

Counsel and parties present.

Discussion and argument regarding Special Verdict Form, and Instructions.

9:10 a.m. Court in recess.

9:20 a.m. Court in session.

Jury present.

9:21 a.m. Defendants' witness, Mark Gustafson, resumes the stand.
Cross examination begins by Mr. Parker.

00-cv-01077-JLK-KLM
Jury Trial Day 3
April 30, 2008

9:23 a.m. Transcript of videotaped deposition of Mark Gustafson opened.

9:24 a.m. Continued cross examination by Mr. Parker.

9:28 a.m. Redirect examination by Mr. Waas.

Witness excused.

9:29 a.m. Defendant's witness, Lotfollah Sabzevari, called and sworn.

9:30 a.m. Direct examination begins by Ms. Campbell.

9:38 a.m. Plaintiff's Oral Motion to Strike testimony is DENIED.
Continued direct examination by Ms. Campbell.

9:49 a.m. Cross examination begins by Mr. Ulmer.

Plaintiff/Relator exhibit 28 offered and admitted.

10:14 a.m. Continued cross examination by Mr. Ulmer.

Plaintiff/Relator exhibit 20 offered.

Objection as to relevance. Sustained.

10:27 a.m. Continued cross examination by Mr. Ulmer.

10:31 a.m. Bench conference regarding discovery dispute.
OVERRULED.

10:36 a.m. Court in recess.

10:55 a.m. Court in session.

Discussion regarding juror questions; marked as Jury questions 5 and 6.

10:57 a.m. Jury present.

The Court advises the jury regarding questions.

10:58 a.m. Continued cross examination by Mr. Ulmer.

00-cv-01077-JLK-KLM
Jury Trial Day 3
April 30, 2008

11:14 a.m. Redirect examination by Ms. Campbell.

Witness excused.

11:16 a.m. Defendants' witness, Mark Gustafson, recalled to the stand.
Direct examination begins by Mr. Waas.

11:18 a.m. Cross examination begins by Mr. Parker.

11:26 a.m. Jury excused.

The Court advises counsel that the Rule 50 motion will be postponed.

Discussion regarding instructions and Special Verdict Form.

11:30 a.m. Defendants' objection to the Court's final jury instructions presented by
Ms. Campbell.

Objection OVERRULED.

11:31 a.m. Plaintiff/Relator objections to the Court's final jury instructions presented
by Mr. Ulmer.

Objection OVERRULED.

11:37 a.m. Plaintiff/Relator propose additional instructions.

Instructions REJECTED.

The Court advises counsel that each side will be allowed 30 minutes for closing
arguments.

11:26 a.m. Defense rests.

11:44 a.m. Court in recess.

1:05 p.m. Court in session.

1:07 p.m. Jury present.

The Court instructs the jury regarding remaining trial schedule.

00-cv-01077-JLK-KLM
Jury Trial Day 3
April 30, 2008

1:13 p.m. Closing argument by Mr. Ulmer.

1:30 p.m. Closing argument by Ms. Campbell.

2:00 p.m. Rebuttal closing by Mr. Ulmer.

2:16 p.m. The Court instructs the jury.

2:53 p.m. CSO sworn.

2:54 p.m. The Jury excused to begin deliberations.

2:55 p.m. Court in recess.

Trial continued.

Time in court - 4 hours, 13 minutes

(Jury recessed deliberations at 4:50 p.m. and will resume tomorrow morning at 9:00 a.m.)

- ① Is it relevant, permissable or helpful for the jury to know the outcome of the Kim case?
- ② How many staff worked on the meat side and how many on the hide side?

Jury Question

5 & 6

4-30-08